

26VECV03948 26VECV03948

County: los-angeles

Division: Civil Law and Motion

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26VECV03948 STABILE v. MIDKIFF, et al.

September 14, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Motion to Quash Service of Summons

I.

Background

This is a landlord-tenant action arising out of the rental agreement between Plaintiff Joel Stabile a/k/a Joe Stabile ("Plaintiff") and Defendants David Midkiff, Augusta Midkiff a/k/a Agusta Midkiff, and DOES 1 through 10 (collectively, "Defendants"), for renting the real property located at 19934 Kittridge Street, Winnetka, CA 91306 (the "Subject Property") in exchange for \$2,695.00 per month. On July 7, 2026, Plaintiff filed a Complaint against Defendant, alleging causes of action for: (1) Fraud; (2) Ejectment; (3) Breach of Contract; (4) Unjust Enrichment; (5) Conversion; and (6) Trespass.

On August 20, 2026, Defendants David Midkiff, Augusta Midkiff a/k/a Agusta Midkiff (jointly, the "Midkiff Defendants") filed the instant Motion to Quash Service of Summons. On August 25, 2026, Plaintiff filed an Opposition. Per the Court's August 26, 2026 order, Midkiff Defendants were ordered to file a reply brief at least five court days in advance of this hearing date, which would have been September 4, 2026. (Min. Order, 8/26/26.) To date, no reply has been filed.

II. Discussion

"A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow, may serve and file a notice of motion for one or more of the following purposes: [¶](1) To quash service of summons on the ground of lack of jurisdiction of the court over him or her. [¶](2) To stay or dismiss the action on the ground of inconvenient forum. [¶](3) To dismiss the action pursuant to the applicable provisions of Chapter 1.5 (commencing with Section 583.110) of Title 8." (Code Civ. Proc., § 418.10, subd. (a).)

Midkiff Defendants move for an order quashing the service of the summons and complaint upon them on the grounds that neither of them were served according to any of the statutorily authorized methods for service of process. (Mot. at 2:3-4.) Specifically, Midkiff Defendants contend that (1) they were not personally served the summons and complaint; (2) substituted service was effected; and (3) no subsequent mailing of the summons and complaint was made. (Id. at 2:6-9.)

With respect to personal service, "[a] summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of such delivery...The date upon which personal delivery is made shall be entered on or affixed to the face of the copy of the summons at the time of its delivery. However, service of a summons without such date shall be valid and effective." (Code Civ. Proc., § 415.10.)

As to substituted service, "If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at

the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.” (Code Civ. Proc., § 415.20, subd. (b) [emphasis added].)

Here, Midkiff Defendants attest that on or about July 22, 2026, papers appearing to include documents for this instant lawsuit were thrown or left at the front door of their residence but no one personally handed these documents to either of them. (D. Midkiff Decl., ¶4; A. Midkiff Decl., ¶4.) In opposition, Plaintiff indicates that proof of service states that Defendant David Midkiff was personally served the summons and complaint and Defendant August Midkiff was served via substituted service on Defendant David Midkiff. (Opp. at 3:7-16; Tamer Decl., ¶10, Ex. A.) The summons and complaint were thereafter mailed with a notice of acknowledgement and receipt. (Id.)

The Court notes that the proof of service documents Plaintiff attaches to the opposing papers were not filed with the Court. “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” (Cal. Rules of Court, Rule 3.110, subd. (b) [emphasis added].) As such, the alleged proofs of service are not properly before this Court. Even assuming arguendo the proofs of service were filed with the Court as required, they indicate that the summons and complaint were served by a third party who is not a Registered Process Server in California or any other state, thus not entitled to the presumption of valid service under Evidence Code Section 647.

Nevertheless, Plaintiff and Plaintiff’s counsel of record, Steven Tamer aver under penalty of perjury that they were present when personal service was made. In fact, Plaintiff and Mr. Tamer state that they personally observed Defendant David Midkiff be served with the summons and complaint. (Stabile Decl., ¶3; Tamer Decl., ¶6.) Furthermore, Plaintiff and Mr. Tamer state that they saw Defendant Augusta Midkiff come out of the residence several times that day while Plaintiff, Mr. Tamer, and the others were waiting for the Los Angeles Police Department (“LAPD”) to arrive. (Stabile Decl., ¶4; Tamer Decl., ¶7.) The LAPD notes given to Plaintiff and Mr. Tamer indicate that “residents refused entry to residence....” (Tamer Decl., ¶11, Ex. B.) The Midkiff Defendants have not presented any evidence on reply contradicting and/or refuting the documentary evidence provided by Plaintiff and his counsel, Mr. Tamer.

Taking these facts altogether, the Midkiff Defendants fail to demonstrate that personal service and substituted service was not properly completed.

Request for Attorney's Fees and Sanctions

Plaintiff's counsel of record, Mr. Tamer seeks \$4,900.00 in attorney's fees and sanctions against the Midkiff Defendants consisting of: (1) 5.5 hours drafting the opposition and supporting papers and (2) 1.5 hours preparing for and attending the hearing at an hourly rate of \$700.00/hour. (Tamer Decl., ¶12.) However, Mr. Tamer cites to no legal authority for seeking sanctions on a motion to quash service of summons. Additionally, although the Court has discretionary power to order sanctions under the Code of Civil Procedure Section 128.5, subdivision (a), the Court declines to impose sanctions at this time as this case is still in the pleading stages. The parties are advised that any conduct moving forward that fall within the parameters of Code of Civil Procedure Section 128.5, subdivision (a) and upon noticed motion may result in discretionary sanctions.

III.

Conclusion

Accordingly, Defendants David Midkiff and Augusta Midkiff's Motion to Quash Service of Summons is DENIED. Plaintiff Joel Stabile's Request for Discretionary Sanctions is also DENIED.

Defendants David Midkiff and Augusta Midkiff are ordered to file and serve their Answer to the Complaint within 15 days of this order.

Defendants David Midkiff and Augusta Midkiff to give notice.